

The logo for Wave Bite is centered on a dark blue square. It features the words "Wave" and "Bite" in a large, elegant, light-colored script font, stacked vertically. Below the text is a small, stylized green wave graphic.

*Wave
Bite*

FEINE SPEISEN & GETRÄNKE
& Events

WAVE BITE HOLDING AG - MASTER SHAREHOLDER AGREEMENT

Version: 03.2026

Shareholders' Agreement

of March 22, 2026

Between

1. Future Investor(s)
(hereinafter "Investor")

Future Investors may accede to this Agreement by executing an accession deed in a form approved by the Company.

2. Carsten Voigt

Hauptstrasse 23, 4242 Laufen, Switzerland
(hereinafter "Founder 1")

3. Marcus Börner

Seestrasse 21A, 15712 Königs Wusterhausen, Germany
(hereinafter "Founder 2")

Founder 1 and Founder 2 are referred to individually as a "Founder" and collectively as the "Founders". The Founders and any Investors are referred to individually as a "Shareholder" and collectively as the "Shareholders". Wave Bite Holding AG, Hauptstrasse 23, 4242 Laufen, Canton Basel-Landschaft, Switzerland is referred to herein as the "Company".

(The Shareholders and the Company are referred to individually as a "Party" and collectively as the "Parties".)

Preamble

- The Company is intended to operate as a Swiss stock corporation (Aktiengesellschaft) under the name Wave Bite Holding AG and is currently in formation. The commercial register number is pending and shall be inserted once available.
- The Company's registered office is in Laufen, Canton Basel-Landschaft, Switzerland. Its wholly owned operating subsidiary is Wave Bite GmbH, c/o Oberste Chefetage, Flämingstrasse 4, 15738 Zeuthen, Germany.
- The Company's core business is the development, operation and scaling of the Wave Bite brand as a premium platform for floating gastronomy, experience and event businesses, together with associated technology, licensing, design, distribution and sustainable mobility activities.
- The Parties have agreed on the initial ownership structure of the Company, pursuant to which Carsten Voigt holds the majority of the shares and Marcus Börner holds a fixed equity participation of five percent (5.0%) of the share capital of the Company. Such participation is intended to be implemented and maintained within the Company's capital structure.
- The Parties intend to enter into one or more investment and subscription arrangements pursuant to which future Investors may subscribe for shares in the Company. As a condition to such financing, the Parties wish to govern their rights and obligations in a clear, consistent and investor-ready framework.
- This Agreement sets out the binding framework governing the relationship between the Shareholders and the Company, including ownership, governance and transfer restrictions, and is designed to be compatible with future financing rounds without requiring fundamental restructuring.

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1. Definitions and Scope

Capitalized terms used in this Agreement have the meanings given below and in the relevant operative provisions. This Agreement applies to all shares and share-related rights held by the Parties now or in the future.

Term	Meaning
Agreement	This shareholders’ agreement including its annexes, as amended from time to time in accordance with its terms.
Articles	The articles of association of the Company, as amended from time to time.
Board	The board of directors of the Company.
Business	The development, operation and scaling of the Wave Bite brand and related floating gastronomy, event, licensing, technology and mobility activities.
Capital Increase	Any current or future share capital increase implemented for the seed financing or another approved financing.
Company	Wave Bite Holding AG, registered office at Hauptstrasse 23, 4242 Laufen, Switzerland, commercial register entry pending at the date of this draft.
Founder	Carsten Voigt and Marcus Börner, and “Founders” means both together.
Investor Director	A board member nominated by the Seed Investors in accordance with Section 5.1, if the relevant threshold is met.
Seed Investor	Any investor party to this Agreement or acceding to it under Section 15.
Shares	Any registered shares or other equity interests issued by the Company from time to time.
Subsidiary	Wave Bite GmbH, c/o Oberste Chefetage, Flämingstrasse 4, 15738 Zeuthen, Germany, wholly owned by the Company.
Phantom Shares	Virtual, non-voting economic participation rights that do not create shareholder status and are governed separately from this Agreement.

2. General Undertaking

Each Shareholder undertakes to exercise its rights as a shareholder and to procure, to the extent legally permissible, that any director nominated by it exercises his or her rights in a manner consistent with this Agreement, the Articles and the applicable corporate governance framework of the Company, subject to mandatory law and fiduciary duties.

3. Ownership Structure

3.1 Current Ownership

As of the date of this Agreement, the share capital of the Company is allocated as follows:

- Carsten Voigt holds ninety-five percent (95.0%) of the issued and registered shares of the Company; and
- Marcus Börner holds five percent (5.0%) of the issued and registered shares of the Company.

Such shareholdings reflect the agreed founder structure and shall be maintained in accordance with this Agreement and the Company's Articles.

3.2 Phantom Participation

The Parties acknowledge that certain economic participation arrangements exist outside of this Agreement, including:

- a three percent (3.0%) economic participation allocated to David Deli; and
- a fourteen percent (14.0%) phantom share pool reserved for future key partners.

Such arrangements constitute purely economic participation rights and do not represent shares in the Company, do not confer any shareholder rights (including voting or information rights), and are governed exclusively by separate agreements.

3.3 Future Investors

Future Investors may acquire shares in the Company pursuant to separate investment and subscription agreements. Any such issuance of shares shall be reflected in Annex 3 and implemented in accordance with this Agreement and the Articles.

Stakeholder	Status in master	Draft equity view	Instrument	Notes
Carsten Voigt	95% of issued shares	Founder majority holder	Ordinary registered shares	Founder and majority shareholder of the Company.
Marcus Börner	5.0% of issued shares	5.0% fixed founder-side participation	Ordinary registered shares	Fixed founder participation; no vesting, no options, no phantom structure.
David Deli	3% economic participation	No shareholder status under this SHA	Phantom shares	No shareholder status; no voting or control rights; governed by separate agreement.

Stakeholder	Status in master	Draft equity view	Instrument	Notes
Phantom Share Pool	14% reserve	No shareholder status under this SHA	Virtual / phantom pool	Reserved for future key partners; no shareholder status; subject to Board approval.
Future Investor(s)	No shareholder status under this SHA	n/a – to be agreed upon in future financing	Preferred or ordinary shares	Participation subject to future investment documentation and reflected in Annex 3

4. Constitutional Documents / Order of Precedence

4.1 Consistency of Corporate Documents

The Parties undertake to adopt, maintain and, where required, update the Articles of Association and any board or management regulations of the Company in a form consistent with this Agreement.

4.2 Order of Precedence

In the event of any conflict or inconsistency between this Agreement, the Articles of Association, any board regulations, management regulations or any other corporate or internal document of the Company, this Agreement shall prevail to the fullest extent permitted by mandatory law.

4.3 Group-Level Coordination

The Parties acknowledge that certain aspects of the Wave Bite group structure may be governed by separate agreements, including intercompany agreements or project-related arrangements. To the extent legally permissible, such agreements shall be interpreted and, where necessary, aligned in a manner consistent with this Agreement. In the event of a direct conflict, this Agreement shall prevail at the shareholder level.

5. Board of Directors

5.1 Representation of the Board and Initial Composition

The Board shall comprise a maximum of five (5) directors.

(a) Founder Directors

Carsten Voigt shall serve as initial Chairperson of the Board and shall be registered with sole signatory authority in Switzerland, subject to registration and applicable Swiss corporate law requirements.

Marcus Börner shall serve as a Board member with responsibility for technical and development matters and shall have joint signatory authority by two, subject to registration and corporate implementation.

(b) Investor Director

Investors (if any) shall have the right to nominate one (1) Investor Director for election by the shareholders' meeting, provided that such Investors collectively hold at least ten percent (10%) of the Company's issued share capital on a fully diluted and as-converted basis.

If no Investors meeting such threshold are admitted, no Investor Director shall be appointed.

(c) Independent Director

The Parties may jointly agree to appoint one independent director at a later stage. No independent director is required at the date of this Agreement.

(d) Term and Election

The directors shall be elected for one-year terms and shall be eligible for re-election. Each Shareholder undertakes to vote in favour of the nominees designated in accordance with this Section 5.1.

(e) Board Meetings and Quorum

Board meetings shall be validly constituted if a majority of all directors are present in person or by video or telephone conference.

At least one Founder Director must be present for any valid quorum.

If an Investor Director has been appointed, such Investor Director shall be duly invited to all Board meetings. Failure of the Investor Director to attend a meeting after proper notice shall not prevent the Board from convening or adopting valid resolutions. For so long as the Founders collectively hold more than fifty percent (50%) of the shares, they shall retain majority influence over Board composition.

5.2 Resolutions of the Board

Board resolutions shall be adopted by simple majority of the votes cast by the directors present, unless a higher threshold is expressly required in this Agreement.

In the event of a tie, the Chairperson shall have the casting vote.

For so long as the Founders collectively hold at least fifty percent (50%) of the shares, they shall retain majority influence over Board decisions.

The Investor Director shall have standard information and participation rights but no veto right unless explicitly agreed in Annex 6.

5.3 Board Compensation

Directors who are Founders shall not receive separate board compensation unless otherwise resolved by the Board.

Any compensation for an independent director or Investor Director shall be determined by the Board in a commercially reasonable manner.

5.4 D&O Insurance

The Company shall use best efforts to procure appropriate directors' and officers' liability insurance for all Board members once commercially reasonable for the stage of the Company.

6. Important Shareholder and Board Matters

The matters listed in Annex 6a (Important Shareholders' Matters) and Annex 6b (Important Board Matters) constitute reserved matters of the Company.

Such matters shall require the prior approval of the respective competent body as specified in the relevant Annex, including, where applicable, the shareholders' meeting or the Board of Directors.

No such reserved matter may be implemented, approved or otherwise effected without obtaining the required approval in accordance with this Agreement.

7. Company Management

7.1 Delegation of Company Management

The Board may delegate the day-to-day management of the Company to the management of the Company and, where applicable, to the management of its Subsidiary, Wave Bite GmbH, through board regulations or management regulations.

Such delegation shall not affect the Board's overall responsibility for strategic direction, supervision and its non-transferable duties under Swiss law.

The Board shall retain ultimate authority over all matters not expressly delegated and over all matters reserved to it under this Agreement, the Articles or applicable law.

7.2 Incentive Plans

The Company may maintain or adopt employee or service provider participation plans, including phantom share plans and other virtual or equity-based incentive structures.

Any such plans may include, among others, (i) an existing three percent (3.0%) economic participation allocated to David Deli and (ii) a fourteen percent (14.0%) phantom share pool reserved for future key partners.

Such participation rights shall constitute purely economic interests and shall not represent shares in the Company, shall not confer any shareholder rights (including voting or control rights), and shall be governed exclusively by separate agreements or plan documentation.

Any future equity-based or virtual participation plans implemented for personnel or key partners shall require prior approval of the Board and, where required by law or this Agreement, approval of the shareholders.

7.3 Dividends Policy

The Parties acknowledge that the Company is a growth-stage venture. For the foreseeable future, profits shall primarily be retained and reinvested in the development, operations and scaling of the business.

Any distribution of dividends shall require a formal resolution of the shareholders in accordance with applicable law and the Articles.

7.4 Additional Financing

The Company may raise additional equity, debt or convertible financing, subject to the approval requirements set out in this Agreement, including any applicable reserved matters.

Each Shareholder undertakes to support duly approved financing rounds and to take all actions reasonably required to implement such financing, including voting in favour of the necessary resolutions, subject to applicable pre-emption rights and consent rights under this Agreement and the Articles.

Nothing in this Section shall be interpreted as limiting any Shareholder's statutory or contractual protection rights, including pre-emption rights or specifically agreed approval thresholds.

7.5 Consent regarding Convertible Instruments

If the Company raises funds through convertible loans, venture debt or similar instruments, such financing shall be subject to the approval requirements set out in this Agreement, including any applicable reserved matters.

Each Shareholder undertakes to support duly approved convertible financing transactions and to take all actions required to implement the agreed conversion mechanics, including voting in favour of the necessary resolutions.

Any conversion into equity shall be carried out in accordance with the terms of the relevant financing documentation and in compliance with applicable law, the Articles and this Agreement.

Nothing in this Section shall limit any Shareholder's statutory or contractual protection rights, including pre-emption rights or specifically agreed approval thresholds.

8. Reporting and Information Rights

Without prejudice to any statutory rights, the Company shall provide each Investor (if any) with the following information for so long as such Investor holds at least five percent (5.0%) of the Company's issued share capital, or such lower threshold as may be agreed in the relevant investment documentation:

- annual statutory financial statements within one hundred twenty (120) calendar days after each financial year end;
- unaudited quarterly management accounts within forty-five (45) calendar days after each quarter end;
- a management update including material KPIs and business developments at least quarterly;
- the proposed annual budget before the start of each financial year, where reasonably practicable; and
- such additional information as may be reasonably required for investment monitoring, audit, tax or regulatory purposes, provided that such requests do not impose an undue burden on the Company and remain subject to confidentiality and conflict of interest constraints.

9. Preferences and Share Rights

9.1 Dividend Preference

No dividend preference shall apply under this Agreement unless expressly agreed in a duly executed Investment and Subscription Agreement and reflected in the Articles.

9.2 Liquidation Preference

Any liquidation preference shall only apply if expressly agreed in a duly executed Investment and Subscription Agreement and mirrored in the Articles.

In the absence of such express agreement, no liquidation preference or comparable preferential economic treatment shall arise under this Agreement.

9.3 Anti-Dilution

No anti-dilution protection shall apply under this Agreement.

Any anti-dilution protection shall only apply if expressly agreed in a duly executed Investment and Subscription Agreement and implemented in accordance with the Articles.

10. Conversion

Any conversion rights attaching to preferred shares shall be governed exclusively by the terms set out in a duly executed Investment and Subscription Agreement and reflected in the Articles.

Unless expressly agreed otherwise in such documents, any conversion into ordinary shares shall occur on a one-for-one basis.

No conversion mechanism shall apply unless clearly and expressly defined in the relevant financing documentation.

All conversions shall be implemented in compliance with applicable law, the Articles and any approved share capital mechanisms.

11. Transfer Restrictions

11.1 General Provisions

Shares and any rights to subscribe for Shares may only be transferred in accordance with this Agreement, the Articles and applicable law. No Shareholder may pledge, encumber or otherwise dispose of its Shares without the required approvals under this Agreement.

11.2 Permitted Transfers

Transfers to Affiliates of a Shareholder, to the Company in connection with duly approved incentive arrangements, or in any other case expressly permitted by this Agreement shall be permitted, provided that the transferee accedes to this Agreement in writing and agrees to be bound by its terms.

For the purposes of this Agreement, “Affiliate” means any entity directly or indirectly controlled by, controlling, or under common control with the relevant Shareholder.

11.3 Right of First Refusal

Any proposed transfer of Shares to a third party shall first be offered pro rata to the non-selling Shareholders.

To the extent permitted by law and not exercised by the other Shareholders in full, the Company (or a third party designated by the Company) may acquire the remaining Shares.

The selling Shareholder shall provide written notice of the intended transfer, including the price and all material terms.

The beneficiaries of the right of first refusal shall have thirty (30) calendar days from receipt of such notice to elect to purchase the offered Shares on the same terms.

11.4 Tag-Along (Co-Sale Right)

If one or more Shareholders propose to transfer Shares to a third party resulting in (i) a change of control of the Company or (ii) the transfer of fifty percent (50%) or more of the voting rights, each other Shareholder shall have the right to participate in such transfer on the same price and terms, pro rata to its shareholding.

11.5 Drag-Along (Co-Sale Obligation)

If Shareholders holding at least seventy-five percent (75%) of the issued Shares (excluding any phantom or virtual participation rights) approve a bona fide offer to acquire all Shares in the Company (a “Drag Sale”), each other Shareholder shall be obliged to sell its Shares on the same terms.

Notwithstanding the foregoing, any Drag Sale shall require the prior written consent of Carsten Voigt (Founder 1), unless the Drag Sale implies an equity valuation of the Company equal to or exceeding CHF 50,000,000 or any higher threshold unanimously approved by the Board.

The consideration shall be allocated among Shareholders pro rata to their respective shareholdings.

All Shareholders shall take all actions reasonably required to effect such Drag Sale, including the execution of sale and transfer documentation.

12. Founder Equity / No Reverse Vesting

No reverse vesting shall apply to the shareholdings of the Founders under this Agreement.

In particular, Marcus Börner’s fixed participation of five percent (5.0%) of the share capital of the Company constitutes fully vested founder equity and is not subject to any vesting, milestones, forfeiture, clawback or similar mechanisms.

Carsten Voigt’s shareholding is likewise fully vested and not subject to reverse vesting or similar restrictions.

Any introduction of vesting, reverse vesting or comparable mechanisms shall require the prior written consent of the affected Founder and must be expressly agreed in a duly executed agreement.

13. Non-Competition and Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months thereafter, no Founder and no Shareholder who is directly involved in the management or strategic direction of the Company shall, without prior written approval of the Board, directly or indirectly:

- (i) establish, acquire, operate or participate in any business;
- (ii) hold a material economic interest in; or
- (iii) advise, be employed by or otherwise support, any business that is in direct competition with the Company's business activities within Switzerland or Germany.

For the purposes of this Section, a competing business shall mean any business operating in the field of floating, mobile or water-based gastronomy, hospitality or comparable experience-based concepts that are substantially similar to the Company's business model.

Passive investments representing less than five percent (5.0%) of the share capital of a publicly listed company shall not constitute a breach of this Section.

14. Confidentiality

Each Party undertakes to keep strictly confidential this Agreement, the negotiations leading to it and all non-public information relating to the Company, its Subsidiary and its business, including but not limited to business plans, technical documentation, pricing, customer and supplier relationships, software, designs, data rooms, board materials and financing information ("Confidential Information").

Confidential Information may be used solely for the purposes of this Agreement and may only be disclosed to a Party's representatives, advisers or financing sources on a strict need-to-know basis, provided that such persons are bound by confidentiality obligations no less restrictive than those set out in this Agreement. Each Party shall remain responsible for any breach of this Section by such persons.

The confidentiality obligations under this Section shall apply during the term of this Agreement and for a period of five (5) years thereafter.

The foregoing obligations shall not apply to information that (i) is or becomes publicly available without breach of this Agreement, (ii) was lawfully known to the receiving Party prior to disclosure, (iii) is lawfully received from a third party without restriction, or (iv) is independently developed without use of Confidential Information.

If disclosure is required by law, court order or regulatory authority, the disclosing Party shall, to the extent legally permissible, inform the other Party in advance and limit the disclosure to the minimum extent required.

15. Accession

No person shall become a shareholder of the Company unless and until such person has executed a duly completed accession declaration in a form approved by the Company.

By executing such accession declaration, the acceding person agrees to be bound by this Agreement as a Shareholder with the same rights and obligations as the existing Shareholders, to the extent applicable.

The Company shall ensure that no transfer or issuance of Shares is registered unless the relevant transferee or subscriber has acceded to this Agreement in accordance with this Section.

16. Term and Termination

This Agreement shall enter into force for each Party upon its execution and, where required, upon registration of the relevant capital increase.

This Agreement shall remain in force for an indefinite period.

A Party shall cease to be bound by this Agreement upon ceasing to hold any Shares in the Company, without prejudice to any rights and obligations accrued prior to such date and any provisions that expressly or by their nature survive termination, including confidentiality, non-competition, dispute resolution and liability provisions.

This Agreement may only be terminated in whole by written agreement of all Shareholders.

In the event of an initial public offering (IPO) of the Company, this Agreement shall terminate upon the first day of trading, unless the Parties agree to continue certain provisions in writing.

17. Miscellaneous

17.1 Several Obligations

Except where expressly provided otherwise, the rights and obligations of the Parties under this Agreement shall be several and not joint.

17.2 Costs and Expenses

Unless expressly provided otherwise in any duly executed investment documentation, each Party shall bear its own costs and expenses in connection with the negotiation, execution and implementation of this Agreement and the transactions contemplated hereby.

17.3 Notices

Any notice under this Agreement shall be in writing and delivered by hand, courier or email to the latest address notified by the relevant Party.

Notices sent by email shall be deemed received on the date of transmission, provided that no delivery failure notification is received.

17.4 Entire Agreement

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions, negotiations, drafts and understandings relating thereto.

Nothing in this Section shall limit or override any duly executed Investment and Subscription Agreement or other definitive financing documents expressly intended to coexist with this Agreement.

17.5 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

The Parties shall replace any such invalid or unenforceable provision with a valid provision that most closely reflects the original commercial intent of the Parties.

17.6 Amendments

This Agreement may be amended only by a written instrument signed by Shareholders holding at least eighty percent (80%) of the issued Shares.

No amendment shall materially adversely affect the economic or governance rights of any Shareholder or share class without the prior consent of such affected Shareholder or share class, to the extent such consent is required under this Agreement or applicable law.

17.7 Form Requirements

This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

Execution may be effected by wet-ink signature or by recognised electronic signature. PDF counterparts and execution via electronic signature platforms shall be deemed valid and binding.

18. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the substantive laws of Switzerland, excluding its conflict of laws rules and excluding the United Nations Convention on Contracts for the International Sale of Goods (CISG).

Any dispute, controversy or claim arising out of or in connection with this Agreement, including its validity, invalidity, breach or termination, shall be finally resolved under the Swiss Rules of International Arbitration of the Swiss Arbitration Centre.

The seat of arbitration shall be Basel, Switzerland. The language of the proceedings shall be German. The arbitral tribunal may allow submissions and evidence in English without requiring translation.

The arbitral tribunal shall consist of one (1) arbitrator, unless the Parties agree otherwise.

Prior to the constitution of the arbitral tribunal, and to the extent permitted by law, each Party may seek interim or conservatory measures from the competent state courts at the seat of arbitration or at the domicile of the opposing Party.

19. Signatures

The Parties have caused this Agreement to be duly executed as of the date first written above.

Future Investor(s) (if applicable)

Signature: _____

Name: _____

Date: _____

Founder 1

Signature: _____

Name: Carsten Voigt

Date: _____

Founder 2

Signature: _____

Name: Marcus Börner

Date: _____

Company

Wave Bite Holding AG

Signature: _____

Name: Carsten Voigt

Title: _____

Date: _____

Annex 1 – Definitions (Short Form Reference)

The definitions set out in Section 1 of this Agreement shall apply to this Annex.

Additional financing-specific terms, including but not limited to Subscription Amount, Preferred Shares, Capital Increase, conversion mechanics and investor-specific approval thresholds, shall be defined in the relevant Investment and Subscription Agreement and reflected in the Articles, where applicable.

Annex 3 – Cap Table

Shareholder	Number of Shares	% Ownership (Fully Diluted)	Share Class	Notes
Carsten Voigt	95	95.0%	Ordinary Shares	Founder and majority shareholder
Marcus Börner	5	5.0%	Ordinary Shares	Fixed founder participation; fully vested
TOTAL	100	100%	-	-

Non-Equity Participation	Allocation	Type	Notes
David Deli	3.0 % Phantom Shares	Economic	participation only; no shareholder rights
Phantom Share Pool	14 % Virtual Pool	Pool	Reserved for future key partners; no shareholder rights
Future Investors	TBD	Preferred or Ordinary Shares	To be defined in future financing rounds and reflected in updated Annex 3

Annex 4.1 – Articles of Association

The Articles of Association of the Company, as adopted and amended from time to time, shall be consistent with this Agreement.

The Articles shall, in particular, reflect:

- the registered office of the Company in Laufen, Canton Basel-Landschaft, Switzerland;
- the corporate purpose of the Company;
- the authorised signatory structure;
- the share capital structure; and
- any share class rights and preferences as expressly agreed in the relevant financing documentation.

In the event of any inconsistency between the Articles and this Agreement, the provisions of this Agreement shall prevail to the fullest extent permitted by mandatory law.

Annex 4.2 – Board Regulations

The board regulations of the Company, as adopted and amended from time to time, shall be consistent with this Agreement.

The board regulations shall, in particular, reflect:

- the allocation of responsibilities between the Board and management;
- the signatory and representation structure of the Company;
- the delegation of day-to-day management to the management of the Company and, where applicable, its Subsidiary; and
- the reserved matters and approval requirements set out in this Agreement.

In the event of any inconsistency between the board regulations and this Agreement, the provisions of this Agreement shall prevail to the fullest extent permitted by mandatory law.

Annex 6a – Important Shareholders’ Matters

The following matters (the “Important Shareholders’ Matters”) shall require the prior approval of Shareholders holding at least sixty percent (60%) of the voting shares then outstanding, subject always to any higher majority required under mandatory Swiss law or the Articles of Association.

Notwithstanding the foregoing, any resolution relating to the matters listed below shall require the prior written consent of Carsten Voigt (Founder 1) for so long as he holds at least twenty-five percent (25%) of the issued shares of the Company.

The Important Shareholders’ Matters include:

- any amendment of the Articles of Association, including the company name, registered office, corporate purpose and share capital structure;
- the creation of new share classes, privileged voting rights, capital bands, conditional capital or any limitation or withdrawal of statutory subscription rights;
- any ordinary or extraordinary capital increase, except where expressly authorised under an approved capital range and implemented in accordance with this Agreement;
- any merger, demerger, conversion, liquidation, dissolution or sale of all or substantially all of the Company’s business or assets;
- the creation of any equal or senior preference rights relative to existing share classes;
- any distribution of dividends or other form of capital distribution;
- any amendment that materially adversely affects the rights of any share class, without the approval of the affected class.

Annex 6b – Important Board Matters

The following matters (the “Important Board Matters”) shall require the prior approval of the Board.

Where an Investor Director has been validly appointed under Section 5.1, such Investor Director shall be entitled to participate in all decisions relating to the matters listed below.

For so long as the Founders collectively hold more than fifty percent (50%) of the issued shares, the Founders shall retain majority influence over Board decisions, including the matters listed in this Annex.

The Important Board Matters include:

- approval of the annual budget and any material deviation from it;
- any single investment or expenditure exceeding EUR 25,000 or cumulative quarterly expenditures exceeding EUR 50,000, unless already included in an approved budget;
- any borrowing, granting of security, or entry into factoring, leasing, convertible debt or similar financing arrangements;
- issuance of new shares, options, phantom shares or other convertible or equity-linked instruments, to the extent not already approved under this Agreement;
- employment or termination of executive personnel with annual total compensation exceeding EUR 60,000;
- entry into contracts with a term exceeding twelve (12) months or an annual value exceeding EUR 30,000;
- transfer, encumbrance or licensing of material intellectual property outside the ordinary course of business;
- granting of loans or guarantees to third parties;
- acquisition or disposal of participations in other companies;
- appointment or dismissal of auditors or external legal counsel in extraordinary proceedings; and
- any related-party transaction outside the ordinary course of business.